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Case Number: 25STCV09330 Hearing Date: September 24, 2026 Dept: 413

TENTATIVE RULING

HEARING DATE: September 24, 2026

CASE NUMBER: 25STCV09330

CASE NAME: CHRISTY KRILETICH v. FORD MOTOR COMPANY, et al.

MOVING PARTY: Defendant Ford Motor Company

OPPOSING PARTY: Plaintiff Christy Kriletich

PROCEEDING: MOTION FOR SUMMARY

JUDGMENT/SUMMARY ADJUDICATION

RULING

SUMMARY: The Motion is denied.

Background

This is

an action brought under the Song-Beverly Act. Plaintiff Christy Kriletich ("Plaintiff") alleges that on July 31, 2017, she entered into a warranty contract with defendant Ford Motor Company ("Defendant") concerning a 2017 Ford Focus (the "Vehicle"). Plaintiff alleges that, during the express warranty period, defects and nonconformities to warranty manifested themselves in the Vehicle, substantially impairing the use, value, and/or safety of the Vehicle.

Defendant moves for summary

judgment of Plaintiff's claims against it or, in the alternative, summary adjudication of the first through fourth and sixth causes of action, which are the only causes of action pled against Defendant. Plaintiff has opposed the motion.

MOTION FOR

SUMMARY JUDGMENT/SUMMARY ADJUDICATION

I. Legal Standard

The purpose of a motion for summary judgment or summary adjudication "is to provide courts with a mechanism to cut through the parties' pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute." *Aguiar v. Atl. Richfield Co.* (2001) 25 Cal. 4th 826, 843.) "Code of Civil Procedure section 437c (c) requires the trial judge to grant summary judgment if all the evidence submitted, and 'all inferences reasonably deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (*Adler v. Manor Healthcare Corp.* (1992) 7 Cal.App.4th 1110, 1119.) Summary adjudication may be granted as to one or more causes of action within an action, or one or more claims for damages. (Code Civ. Proc., § 437c(f).)~~~~~

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A defendant moving for summary judgment bears two burdens:

(1) the burden of production – presenting admissible evidence, through material facts, sufficient to satisfy a directed verdict standard; and (2) the burden of persuasion – the material facts presented must persuade the court that the plaintiff cannot establish one or more elements of a cause of action, or a complete defense vitiates the cause of action. (Code Civ. Proc., § 437c(p)(2); *Aguiar*, *supra*, 25 Cal.4th at pp. 850-851.) A defendant may satisfy this burden by showing that the claim "cannot be established" because of the lack of evidence on some essential element of the claim. *Union Bank v. Superior Court* (1995) 31 Cal.App.4th 574, 590.) Once the defendant meets this burden, the burden shifts to the plaintiff to show that a "triable issue of one or more material facts exists as to that cause of action or defense thereto." (*Id.*)

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“On ruling on a motion for summary judgment, the court is to ‘liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party.’ ” (Cheal v. El Camino Hospital, (2014) 223 Cal.App.4th 736, 760.) On a summary judgment motion, the court must therefore consider what inferences favoring the opposing party a factfinder could reasonably draw from the evidence. While viewing the evidence in this manner, the court must bear in mind that its primary function is to identify issues rather than to determine issues. [Citation.]” (Binder v. Aetna Life Ins. Co., (1999) 75 Cal.App.4th 832, 839.)

Defeating summary judgment requires only a single disputed material fact. (Code Civ. Proc., § 437c(c) [motion for summary judgment “shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law”] [emphasis added].) Thus, any disputed material fact means the court must deny the motion – the court has no discretion to grant summary judgment. (Zavala v. Arce (1997) 58 Cal.App.4th 915, 925, fn. 8; Saldana v. Globe-Weis Systems Co. (1991) 233 Cal.App.3d 1505, 1511-1512.)

## II. Discussion

### A.

Plaintiff’s complaint is not time-barred

Defendant moves for summary adjudication of the first through fourth causes of action on the grounds that the complaint is time-barred under Code of Civil Procedure § 871.20. Defendant contends that under section 871.20, the statute of repose for a Song-Beverly action is one year after the expiration of the express warranty, and therefore Plaintiff’s action is time-barred, as Plaintiff purchased the Vehicle in 2017 and the warranty expired on July 30, 2022. In opposition, Plaintiff contends that section 871.20’s time limits apply only prospectively, not retroactively.

Where a change in remedy is retroactively made

in law, such as the shortening of a time limit provision, there must be a reasonable time permitted for the affected party to exercise their remedy before the statute takes effect. (*Rosefield Packing Co. v. Superior Court* in and for City and County of San Francisco (1935) 4 Cal.2d 120, 122 (*Rosefield*)). If the statute operates immediately to cut off the existing remedy for a party, then the retroactive application of it is unconstitutional as to that party. (*Id.* at pp. 122-123.)

“In California, statutes of limitations, being procedural, are normally retroactively applied to accrued causes of action; but the court must inquire whether, in a given case, that retrospective application may violate due process by in effect eliminating the plaintiff's right.” (*Aronson v. Superior Court* (1987) 191 Cal.App.3d 294, 297 (*Aronson*)).

This action was filed on March 28, 2025. The warranty agreement was entered into on July 31, 2017. (*Rogerson Decl.*, Ex. A.) According to the retail installment sales contract, this is the date on which the Vehicle was purchased. (*Rogerson Decl.*, Ex. A.) Using this date, the statute of repose would require the instant action to have been filed not later than July 31, 2023, which is before section 871.21's effective date of January 1, 2025. The enactment of this statute operated to immediately cut off Plaintiff's existing remedy and, under *Rosefield*, cannot constitutionally be retroactively applied to the instant action. (See also *Aronson*, *supra*, 191 Cal.App.3d at p. 297 [“statutes of limitations, being procedural, are normally retroactively applied to accrued causes of action; but... [i]f no time is left [to file suit], or only an unreasonably short time remains, then the statute cannot be applied at all.”])

Although *Aronson* and *Rosefield* directly pertain to statutes of limitation rather than statutes of repose, the same due process concerns are applicable to one as to the other. “Whereas statutes of limitations affect a remedy, statutes of repose extinguish a right of action after the period has elapsed.... The effect of a statute of repose ‘is [thus] harsher than a statute of limitations in that it cuts off a right of action after a specified period of time, irrespective of accrual or even notice that a legal right has been invaded.’ [Citation.]” (*PGA West Residential Assn., Inc. v. Hulven Internat., Inc.* (2017) 14 Cal.App.5th 156, 177.) A statute of repose that extinguishes a plaintiff's right of action immediately upon its effective date based on retroactive application therefore infringes on the plaintiff's due process rights, as is the case here, as it leaves no reasonable time in which to sue after the effective date of the statute.

“Whether there was a reasonable time in these

cases is not a matter committed to the discretion of the trial court. The question is one of constitutionality of the statute which in terms applies to the pending case; and if it appears that there was a reasonable time for exercise of the remedy before the statutory bar became fixed, the lower court cannot consider individual hardship or other circumstances, but must give effect to the express provisions of the law." (Rosefield, supra, 4 Cal.2d at p. 124.) Correspondingly, where there is not a reasonable time for exercise of the remedy after the amendment's effective date, it is similarly outside of the court's discretion whether the statute may be applied, as it is a question of constitutionality of the statute as applied to the case.

Defendant contends that there was a reasonable time to file this action before the statute's effective date; however, that is not the correct test. Whether there was a reasonable time to file the action before the statute's effective date is irrelevant to whether there was a reasonable time to file after the statute's effective date and therefore whether the statute may constitutionally be applied.

Defendant also contends that the statute applies retroactively, citing the trial court case *Pinkney v. FCA US LLC*, case number 25STCV19899 (*Pinkney*). *Pinkney* does not constitute binding authority. Moreover, the court in *Pinkney* does not state that the statute applies retroactively as to time to file an action, but as to the opt-in provisions of the statute. As such, *Pinkney* is inapposite.

Plaintiff's complaint is not time-barred. Defendant's motion for summary judgment, as well as Defendant's motions for summary adjudication of Plaintiff's first through fourth causes of action, are denied.

B. There is a triable issue of material fact as to the sixth cause of action for fraudulent inducement – concealment

Defendant contends that Plaintiff's fraudulent inducement – concealment cause of action fails as a matter of law because Plaintiff has failed to show that a transmission defect, as alleged in the complaint, existed in the car.

The elements of a fraud claim are (1) a misrepresentation; (2) the defendant's knowledge of the falsity; (3) the intent to induce reliance; (4) justifiable reliance on the defendant's statements or

lack thereof; and (5) resulting damages. (Hoffman v. 162 North Wolfe LLC (2014) 228 Cal.App.4th 1178, 1185-1186.) To demonstrate fraudulent concealment, a plaintiff must show that (1) the defendant is in a fiduciary relationship with the plaintiff; (2) the defendant had exclusive knowledge of material facts not known to the plaintiff; (3) the defendant concealed a material fact from the plaintiff; or (4) the defendant makes some partial representations but also suppresses some material facts. (Los Angeles Memorial Coliseum Com. v. Insomniac, Inc. (2015) 233 Cal.App.4th 803, 831.)

Fraud in the inducement is a subset of fraud that occurs when a promisor's consent to an agreement is induced by fraud. (Dhital v. Nissan North America, Inc. (2022) 84 Cal.App.5th 828, 839 (Dhital).)

In support of its contention, Defendant offers as evidence the declaration of Eric Kemnitz, an engineer employed by Defendant, who states that based on his review of Defendant's standard claims list and dealership repair orders, there were no presentations, concerns, or repairs related to the Subject Vehicle's six-speed transmission. (Kemnitz Decl. ¶ 14.) Defendant contends that the existence of the transmission defect constitutes the misrepresentation alleged in the complaint, and that therefore Plaintiff cannot establish the existence of a transmission defect.

This evidence does not establish as a matter of law that Plaintiff cannot prove her claim, because evidence that the Vehicle was not taken in for transmission repairs does not establish that a latent defect, of which Plaintiff was not aware at the time of repairs, did not exist in the Vehicle. Plaintiff's awareness of the defect at the time of purchase or at the time of repairs is immaterial to the existence of the defect or of the cause of action, as indicated by the applicability of the delayed discovery rule to fraud actions. (See Weatherly v. Universal Music Publishing Group (2004) 125 Cal.App.4th 913.) Defendant has, therefore, failed to carry its burden.

Moreover, even if Defendant had carried its burden, Plaintiff testified that the Vehicle experienced problems with changing gears to and from park and reverse, and that Plaintiff informed repair workers of this issue when taking the Vehicle for repairs. (Lister Decl., Ex. 1, 42:22 – 43:25; 53:9 – 53:25.) Plaintiff has therefore demonstrated a triable issue of material fact as to the existence of a transmission defect in the Vehicle. Defendant's

motion for summary adjudication of Plaintiff's sixth cause of action is denied.

Conclusion

Defendant's motion for summary  
judgment or, in the alternative, summary adjudication is denied.

Date: September  
24, 2026

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William  
E. Weinberger

Judge,  
Los Angeles Superior Court